

HOUSE No. 5642

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Finn

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the disability retirement of Michael D. Chapdelaine, a police officer in the city known as the town of West Springfield.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael J. Finn</i>	<i>6th Hampden</i>	<i>7/29/2026</i>

HOUSE No. 5642

By Representative Finn of West Springfield, a petition (accompanied by bill, House, No. 5642) of Michael J. Finn (with the approval of the mayor and town council) relative to the disability retirement of Michael D. Chapdelaine, a police officer in the city known as the town of West Springfield. Public Service. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the disability retirement of Michael D. Chapdelaine, a police officer in the city known as the town of West Springfield.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding any general or special law to the contrary, the West
2 Springfield retirement board shall increase the accidental disability retirement allowance payable
3 to Michael D. Chapdelaine, a retired police officer of the police department in the city known as
4 the town of West Springfield, who, as a result of injuries sustained while in performance of his
5 duties on November 8, 2000, is totally and permanently incapacitated from performing the
6 essential duties of a police officer.

7 (b) The yearly amount of pension for Michael D. Chapdelaine, paid monthly, shall be
8 equal to 100 per cent of the rate of regular compensation used in calculating his original
9 accidental disability retirement allowance, effective on his retirement date of May 29, 2002,
10 together with any cost of living adjustments subsequently granted pursuant to sections 102 and
11 103 of chapter 32 of the General Laws.

(c) Notwithstanding the hours and earnings limitations of sections 91 and 91A of chapter 32 of the General Laws or any other general or special law to the contrary, the annual earnings of Michael D. Chapdelaine from employment in the service of the commonwealth or a county, city, town, district or authority, including as a consultant or independent contractor or as a person whose regular duties require that his time be devoted to the service of the commonwealth, county, city, town, district or authority during regular business hours, may equal up to 1/2 the amount of his retirement allowance without refund penalty. Michael D. Chapdelaine shall not be eligible for employment under Groups 3 and 4 of the retirement system while receiving benefits under this act. Michael D. Chapdelaine may be employed by a private entity or in the private sector without refund penalty; provided, however, that his service is not devoted to the commonwealth or a county, city, town, district or authority.

(d) In the event that Michael D. Chapdelaine predeceases his spouse, his surviving spouse shall be entitled to 75 per cent of Michael D. Chapdelaine annual pension, paid monthly, as long as such spouse shall live; provided, however, that, when Michael D. Chapdelaine would have reached the mandatory retirement age, his spouse shall continue to be entitled to 75 per cent of the annual pension, including any cost of living increases, as defined in sections 102 and 103 of chapter 32 of the General Laws, that Michael D. Chapdelaine would have received upon reaching the mandatory retirement age; and provided further, that if his spouse is eligible for benefits under this section and under option (c) of section 12 of said chapter 32, his spouse shall elect to receive either a benefit under said option (c) or a benefit under this section but shall not be eligible for both benefits.

(e) If Michael D. Chapdelaine and his spouse predecease their children, the surviving unmarried children, if any, who are under age 18, or under age 22 and are full-time students at an

35 accredited educational institution, or who are over age 18 and physically or mentally
36 incapacitated from earning income on the date of Michael D. Chapdelaine's retirement, shall be
37 entitled to receive a pension of equal proportion, paid monthly, which shall total 75 per cent of
38 the amount of the pension payable to Michael D. Chapdelaine at the time of his death. When a
39 child no longer meets the qualifications for receipt of a pension allocation under this section, said
40 child's pension allocation shall cease and any remaining qualified children shall continue to
41 receive the same amount each received before any child's allocation ceased. The words "full-time
42 student" and "accredited educational institutions" shall have the same meanings as in clause (iii)
43 of paragraph (a) of subdivision (2) of section 7 of chapter 32 of the General Laws.

44 SECTION 2. Nothing in this act shall prohibit Michael D. Chapdelaine or his eligible
45 spouse or children, from receiving additional retirement benefits not required by this act.

46 SECTION 3. This act shall take effect upon its passage; provided, however, that the
47 increase in the accidental disability retirement allowance authorized in section 1 shall be applied
48 retroactively to October 29, 2024, and Michael D. Chapdelaine shall be paid any additional
49 amounts due as a result of such retroactive application.